

**THE REPUBLIC OF UGANDA**

**AGREEMENT TO SURRENDER LEASE/REFUND**

THIS AGREEMENT is made this ... ..day of ....., **2024**

Between

**Hajji** of P.O. Box ....., (hereinafter called "the Lessor" which expression shall where the context so admits shall include his assignees, transferees, administrators and successors in Title) of the one part;

AND

**MR. TITO**..... of P.O. Box ..... (hereinafter called "the Lessee" which expression shall where the context so admits shall include its assignees, transferees, administrators and successors in Title) of the other part

**WHEREAS:**

- (I) The Lessor is the Registered Proprietor of the land comprised in BLOCK ... PLOT ... AT .... measuring approximately 0.0055 Hectares;
- (II) The Lessor leased the above said property to the Lessee for a term of twenty (20) years on a through put basis starting from the 01<sup>st</sup> day of January , 2024;
- (III) The Lessee had paid to the Lessor a sum of UGX 90,000,000/= (Shillings Ninety million only) being rent for the initial five (5) years;
- (IV) The Lessee is desirous of surrendering the said lease back to the Lessor and the Lessor has agreed to the surrender upon the terms contained herein and the lessee has accepted to receive the said refund. aforesaid.

**NOW THIS DEED WITNESSETH as follows:**

1. In consideration of the above premises, the Lessor shall refund to the Lessee a total sum of UGX 236,500,000/= (Shillings Two hundred thirty six million five hundred thousand only) being full and total refund of the consideration paid by the lessor to the Lessee for the purchase of the Lessee's leasehold interest in the said land. Accordingly, the payment of UGX 236,500,000/= by the Lessor to the lessee party shall constitute the consideration for the surrender of the residual of the Lessee's leasehold back to the Lessor.
2. The said amount shall be deposited onto the lesses Account No. .... in .... Ltd, after execution of this Deed being full and total refund receipt whereof shall be by receipt of the funds on the above said account and a confirmation receipt shall constitute acknowledgement by the lessee and shall form part and parcel of this

agreement. FOR AVOIDANCE OF DOUBT, this Agreement shall become effective upon receipt of the transfer of funds onto the account herein agreed.

3. The Lessee are hereby bound by this agreement to surrender the lease described above to the Lessor and by execution of this deed, the Lessee surrenders the certificate of title, their passport photographs and do all that is incidental to perfect the surrender.
4. The Lessor shall take over physical possession of the land surrendered by the Lessee immediately upon confirmation of receipt of the refund and interest onto the lessee's said account.
5. The Lessee hereby declare that the land is free from any adverse interest, estate or occupancy claim from them and accordingly hereby deliver vacant possession of the same to the Lessor.
6. The Lessee hereby relinquish, surrender and forfeit all their interest legal, equitable or otherwise in the occupancy and possessed by them to the Lessor and accordingly the Lessee's interest therein is hereby extinguished, and transferred/surrendered to the Lessor and further the Lessee undertake not to make any claim on the said land in any forum from the date of execution of this Deed.
7. The lessee shall have no further claim against the Lessor since the latter's money has been refunded by the Lessor.
8. The parties hereby acknowledge and agree that the transaction in this Agreement, including the consideration stipulated in Clause 1 of this Agreement and all of the other terms and conditions hereof, comprises a reasonable, arm's-length transaction.
9. The closing of this transaction between the parties shall be when the parties exchange the following:
  - i) Payment of the total consideration;
  - ii) Surrender of the leasehold certificate of title together with duly signed transfer forms plus the Lessee's identification documents and passport photographs to the Lessor;
  - iii) Obtaining vacant possession;
  - iv) Signing of the surrender deed by the both parties.

10. The Lessee guarantee to the Lessor that the subject matter of these presents is free from any adverse claims, incumbrance, third party interest and any such other claims that may affect the interest of the Lessor. For avoidance of doubt the Lessee hereby undertake to fully indemnify the Lessor in the event of any third party claims over ownership of the said land.
11. Each party hereby warranties to make good any damage that may be occasioned by their errors.
12. The parties undertake to act in good faith with respect to each other's rights under this Deed and to adopt all reasonable measures to ensure the realization of the objectives of this Deed.
13. Any dispute arising out of this Deed or related to the interpretation thereof shall be amicably resolved by the parties through dialogue failing of which it shall, before any suit is instituted in any court of law, be referred to an independent mediator appointed and consented to by the Commercial Court in accordance with the Judicature (Commercial Court Division) (Mediation) Rules, 2013 for settlement within one month whose decision shall be binding and final.
14. Any mediation conducted under this Deed shall be settled in accordance with the Judicature (Commercial Court Division) (Mediation) Rules, 2013 and accordingly by executing this Agreement, both parties consent to Mediation as the agreed dispute resolution mechanism and this Agreement shall be construed as a referral to mediation of a commercial dispute by the parties.

IN WITNESS WHEREOF the parties hereto have hereunto affixed their respective hands the day and year first above written.

**SIGNED** for and on behalf of  
the said **HAJJI**

\_\_\_\_\_  
**LESSOR**

In the presence of \_\_\_\_\_

**SIGNED** by the said:

1. \_\_\_\_\_

**Lessee**

In the presence of: \_\_\_\_\_

**DRAWN BY:**

Lionhunter920@gmail.com